

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CLCL053749: BANK OF AMERICA, N.A. vs MARTHA GARCIA

08/18/2026 in Department 21

Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed
Admitted

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Bank of America’s Motion for Order that Matters in Request for Admission of Truth of Facts Be Deemed Admitted (*Unopposed*)

Tentative Ruling:

Plaintiff Bank of America, N.A.'s Motion for Order That Matters in Requests for Admission Be Deemed Admitted is GRANTED.

Defendant Martha Garcia appeared in this action by filing her Answer on November 24, 2025. Plaintiff thereafter served Requests for Admission, Set One, by mail on December 19, 2025, more than 10 days after Defendant's appearance and thus within the time authorized by Code Civ. Proc. § 2033.020(b).

Because the motion is based on Defendant's complete failure to respond under Code of Civil Procedure section 2033.280, rather than a motion to compel further responses under section 2033.290, no meet-and-confer was required.

Plaintiff's counsel has declared that Defendant failed to serve any responses. Under Code Civ. Proc. § 2033.280(c), the Court must deem the requested matters admitted unless Defendant served, before the hearing, a proposed response in substantial compliance with Code Civ. Proc. § 2033.220. No such responses appear in the record presently before the Court.

The motion is GRANTED as to the factual matters specified in Requests for Admission, Set One. Those factual matters are deemed admitted pursuant to Code Civ. Proc. § 2033.280. The Court does not deem the genuineness of the documents identified in the Requests for Admission

admitted because Plaintiff's notice of motion seeks only an order deeming the truth of the specified facts admitted and does not request an order deeming the identified documents genuine.

No monetary sanctions are awarded. Although Code Civ. Proc. § 2033.280(c), makes monetary sanctions mandatory when a failure to respond necessitates the motion, Plaintiff did not properly notice a request for monetary sanctions or provide evidence establishing an amount to be awarded.

Plaintiff shall give notice.